termined by it. In this case, the assignment does express a consideration. It is made for value received.

It is unnecessary to decide, in this case, whether the declaration ought to have alleged that the indorsement was made on consideration. With that question, the jury had no concern, and the direction of the court was not affected by it. There being no demurrer, it could only occur in arrest of judgment. But on a motion in arrest of judgment, the defendant below could not have availed himself of this error, if it be one, because there are two counts in the declaration, one of which is unquestionably good, and the court cannot perceive on which the verdict was rendered. By the act of *jeofails*, in Virginia, there is no error, if any one count will support the judgment.

The second exception is to the refusal of the circuit court to give the opinion prayed for by the counsel for the defendant below. When the error alleged is, not that the court has misdirected the jury, but that the court has refused to give a particular opinion, the opinion demanded must be so perfectly stated, that it becomes the duty of the court to give it as stated.

In this case, the opinion required by the counsel consists of two parts. The first is, to instruct the jury "that if they shall be satisfied, from the evidence that Richard Brooke, the maker of the note in this case, had, at the time the note became due, or at any time previous to the commencement of this suit
*153] against the defendant, property sufficient to pay *the debt claimed," &c., and the plaintiff brought no suit, then this action is not maintainable.

This court conceives that the circuit court ought not to have given this opinion. Had Richard Brooke possessed property, before the making of the note, and not afterwards, the opinion, in the terms in which it was required, would have been a direction to find their verdict for the defendant. So, if Richard Brooke had been in possession of property, for a single day, and had, the next day, become insolvent, the court was asked to say, that, in such a case, the indorser could only be made liable, by suit against the maker. Such a direction, in the opinion of this court, would have been improper.

The second branch of the opinion the circuit court was required to give, is in these words: "Or, if the jury shall be satisfied, that the said plaintiff and the said Brooke have, since the said note became due, both lived in the county of Fairfax, in Virginia, and have continued to reside in the county of Fairfax, until the beginning of the present suit, and the plaintiff hath not brought suit against the said Brooke, in Virginia, then the defendant is not liable in this action."

If the plaintiff had sued Brooke elsewhere than in Virginia, or if Brooke had become insolvent, previous to the making of the note, and had continued to be so, the opinion of the court, if given as prayed, would have been, that, still, a suit against the maker of the note was necessary to give a right of action against the indorser. This is not understood to be the law of Virginia. It is understood to be the law, that the maker of the note must be sued, if he is solvent, but his insolvency dispenses with the necessity of suing him. It is not known, that any decision of the state courts requires that this insolvency should be proved by taking the oath of an insolvent debtor, nor is it believed, that this is the only admissible testimony of
*154] *the fact of insolvency. Other testimony may be admitted. It would, therefore, have been proper to leave it to the jury to deter-